Policy Manual

Last Updated: 2018-01-08

Our Mission

We serve those who serve the people in America's legislatures.

Vision

To serve as a reliable product development partner for legislators who want to make systems of governance more open, more accessible, and more effective. Our products are iteratively built to address meaningful, well-known problems in new, innovative ways and are focused intently on serving user needs over stakeholder interests.

Values

In our work, we will strive to uphold these values: - Open source first - Collaborative - User driven - Inclusive design - Iterative development - Actionable problems - Well documented - Showing, not telling

Creating a Safe, Productive Workplace

Equal Employment, Non-Discrimination, and Reasonable Accommodation

The OpenGov Foundation is committed to equal employment opportunity.

We will not discriminate against employees or applicants for employment on any legally recognized basis including, but not limited to race, religion, color, sex (with or without sexual conduct and including pregnancy and sexual orientation involving transgender status/gender identity, and sex-stereotyping), national origin, age, disability (physical or mental), genetic information, sexual orientation, or any other protected class under federal, state or local law, *as well as* gender identity, parental status, marital status, political affiliation, gender expression, mental illness, socioeconomic status or background, neuro(a)typicality, physical appearance, body size, or clothing.

We are committed to providing equal employment opportunities to qualified individuals with disabilities. This may include providing reasonable accommodation where appropriate in order for an otherwise qualified individual to perform the essential functions of the job.

Harassment, Bullying, Violence in the Workplace Policy

We prohibit harassment of one employee by another employee, supervisor or third party for any reason based on a protected class including but not limited to: veteran status, uniform member status, race, color, religion, sex, national origin, sexual orientation,

physical or mental disability genetic information or any other protected class under federal, state or local law, *as well as* gender identity, parental status, marital status, political affiliation, gender expression, mental illness, socioeconomic status or background, neuro(a)typicality, physical appearance, body size, or clothing. Harassment of third parties by our employees is also prohibited.

The following are considered a protected class: race; religious creed; color; national origin; ancestry; physical disability; mental disability; medical condition, including genetic characteristics; marital status; sex; pregnancy, childbirth or related medical conditions; actual or perceived gender; gender identity; sexual orientation; civil air patrol membership; service in the military forces and age (40 or over). Included in the definition of each protected category is the perception of membership in a protected category and an individual's association with an actual or perceived member of a protected category.

The purpose of this policy is to ensure that all employees shall be free from harassment of any kind. The conduct prohibited by this policy includes conduct in any form including but not limited to e-mail, voice mail, chat rooms, social networking, internet use or history, text messages, pictures, images, writings, words or gestures.

While it is not easy to define precisely what harassment is, it includes: slurs, epithets, threats, derogatory comments or visual depictions, unwelcome jokes, and teasing.

For authoritative guidance on legally prohibited harassment and boundaries, please consult the U.S. Equal Employment Opportunity Commission.

In addition to prohibiting harassment in these forms, we also consider the following unacceptable:

- Making negative or offensive remarks, regardless of to whom they are directed, based on:
  - gender expression,
  - mental illness,
  - socioeconomic status or background,
  - neuro(a)typicality,
  - physical appearance,
  - body size, or
  - clothing.
- Touching people without their affirmative consent.
- Repeatedly and unnecessarily disrupting formal or informal gatherings or meetings, whether in person or within a chatroom setting.
- Retaliating against anyone who files a complaint that someone has violated the provisions of this manual.
- Intentionally or repeatedly referring to people in a way that rejects the validity of their gender identity; for instance, by knowing and intentional use of incorrect pronouns or forms of address.

- Engaging in behaviors that marginalize people or communicate hostile, derogatory, or negative beliefs. Examples include:
  - Patronizing or belittling a person or group,
  - Repeatedly interrupting or talking over someone else,
  - Pedantic corrections that don't add value,
  - Expressing an assumption that persons or groups need concepts defined or explained to them without first asking if they do,
  - Using unsubstantiated language that creates or furthers a belief which diminishes the value or contributions of a person or group,
  - Employing racially or ethnically charged language to describe a person or thing,
  - Referring to an individual in a way that demeans or challenges the validity of any aspect of their personal identity, or
  - Mocking someone's real or perceived accent or first language.

In sum, we always seek to maintain a professional, healthy and supportive environment for every employee. **The guiding principle of The OpenGov Foundation is to be excellent to one another.**

Reporting and Resolution of Violations

Any employee who believes they have been harassed or believes they have witnessed another member of our organization violate the terms of this document should report the situation immediately to one of the following members of management: Executive Director, Chair, Vice Chair, or Treasurer of the Board of Directors. If an employee makes a report to one of these persons and the employee does not receive a satisfactory response, the employee shall report the situation to one of the other designated persons to receive complaints.

The organization will investigate all such reports as confidentially as possible. Adverse action will not be taken against an employee because he or she, in good faith, reports or participates in the investigation of a violation of this policy. Violations of this policy are not permitted and may result in disciplinary action, up to and including discharge.

Drug & Alcohol Policy

The unlawful or improper presence or use of controlled substances or alcohol in the workplace presents a danger to all employees. All members of the organization are prohibited from reporting to work or working while using illegal or unauthorized substances.

Our organization recognizes that drug or alcohol abuse are serious medical conditions and should be treated as such. Therefore, we shall provide all appropriate organizational support and assistance to those within the organization who request it. We will also seek out and retain a employer-sponsored health insurance plan that provide drug and alcohol treatment services.

Conflict of Interest

Employees must never use their positions with the organization for private gain, to advance personal interests or to obtain favors or benefits for themselves, members of their families or any other individuals, corporations, or business entities. Furthermore, employees should avoid situations where a *perception* of a conflict of interest could be created.

Should you encounter a situation that suggests a conflict of interest, please refer the situation the Executive Director, who will in turn seek a determination from the Board of Directors as to whether a conflict exists, and if it exists, whether it is an allowable conflict.

Professional Conduct

Our organization adheres to the highest legal and ethical standards applicable in our line of work. The organization's business is conducted in strict observance of both the letter and spirit of all applicable laws and the integrity of each employee is of utmost importance.

Contact with the Media

We strive to balance the need for intentionality in our organizational communications with each employee's fundamental free speech rights and the important role of media in our society.

It is our policy that media inquiries directly pertaining to the organization, its employees, products, positions, or related operations be referred to the Executive Director.

We also encourage individual employees to speak to members of the media about any subject matter of their choosing, including any subject matter in which the organization may be involved. We simply ask that you present your views as "personal" and not of the organization (unless authorized to do so).

Staff & Boards

Staff

- Seamus Kraft, Co-Founder and Executive Director
- Patrick Bateman, Deputy Executive Director & Chief of Staff
- Aaron Ogle, Director of Product
- Seth Etter, Senior Engineer
- Tanner Doshier, Senior Engineer
- Kunal Kothari, Fellow

Board of Directors

- Phaedra Chrousos, Chair
- Laurent Crenshaw, Vice Chair
- Seamus Kraft, Secretary

- Rich Hirshberg, Treasurer
- Michelle Lee
- Aaron Snow

Board of Advisers

- Scout Addis, Design
- Karien Bezuidenhout, Internal Growth
- Dr. Anne Washington, Open Legal Data
- Aaron Bartnick
- Brandon Andrews
- Jo-Marie St. Martin
- Peter Karman
- Janine Gianfredi
- Bob Sofman

Benefits & Compensation

Payroll

Administered twice monthly, on the 15th and last day of each month, via direct deposit. If either date falls on a weekend, payroll administration will occur on the Friday immediately prior.

The organization's Executive Director is available to help with any payroll or benefits questions.

Medical, Dental, and Vision Coverage

We receive health and dental coverage and pharmacy benefits through an employer-sponsored health insurance plan. The company pays 80% of the premium cost of the plan. The employee pays 20% through payroll deduction. Enrollment in the benefit plans is optional.

Employees will receive specific benefit enrollment information during their onboarding process.

Performance Assessments

Our organization is committed to a fair, collaborative, and straightforward review of each employee's performance. We are in the process of determining the best methodology to carry out this commitment and will update this manual when a determination is made.

Raises and Bonuses

Annual cost of living increases will be combined with any merit increases described above. These will be reviewed and approved by the Board of Directors on an annual basis.

Additional raises and bonuses may be considered at other times to account for special circumstances, such as extraordinary performance, a change in position and/or an increase in responsibilities.

Reimbursable Expenses

What's Covered

The organization will reimburse pre-approved, work-related expenses. Any expenditure totaling more than $1,000—including cumulative expenses like software subscriptions—must be pre-approved by the Board of Directors and Executive Director. Sub-$1,000 reimbursable expenses which do not require Board approval include but are not limited to:

- Travel between work meetings and the office.
- Travel to, from, and during conferences and events.
- Housing and food during conferences and events.
- Business-meeting meals and drinks.
- Office supplies.
- Organization-specific subscriptions and/or software.
- Expenses associated with organization sponsored events.

Employees are expected to travel economy class when traveling by air, book reasonably-priced hotels and not spend excessively on meals and other travel expenses.

How to File a Reimbursement Request

You are strongly encouraged to file reimbursement requests as soon as you incur the expenses. Expenses are usually reimbursed within a week of approval and submission. Each reimbursement request must be sent to the Executive Director, who will review, approve, then submit for payment to appropriate person(s) for execution. Each reimbursement request must include:

- An image or PDF file that containing receipts for each of the expenses for which you are seeking reimbursement.
- A classification of each expense in the one of the following categories: `Travel - In Town`, `Travel - Out of Town`, `Conference`, `Food and Drink`, `Supplies`, `Subscriptions`, or `Event Hosting`.
- A short note for describing each expense (e.g. who, what, where, when, why)

Professional Development

We strongly encourage employees to explore professional development options. The organization will endeavor to set aside an amount equal to 2.0% (at minimum) of its planned operating budget to fund professional development activities. These funds shall be distributed as equitably as possible to all organization employees.

Potential professional development opportunities include, but are not limited to: * Attending relevant professional conferences. * Tuition for relevant classes. * Books on relevant topics.

To seek approval for a professional development opportunity, please submit the following items to your supervisor, who will review and discuss them with you, and if requiring an expenditure greater than $999, share them with the Board of Directors for approval. * A description of the professional development opportunity, how it would support your growth, and how it would benefit the organization. * The total cost of the opportunity, and any relevant payment dates and methods. * The time the opportunity would require (dates, times, including travel) as well as the location.

Schedule, Hours & Vacation

Our Schedule

Employees are expected to work 40 hours per week, but we are flexible on where and when that work gets done.

Employees are expected to attend all meetings to which they have been invited as a "required" participant. Communication is vital to the success of our team; therefore, team members are expected to be reasonably accessible by phone, Slack, and email between the hours of 11 AM–4 PM in their local timezone.

Employees are able to work from home and/or remotely and the organization will make all efforts to ensure a comparable work experience regardless of where an employee is located.

Any time that you won't be available during the regular work day (9 AM to 5 PM locally) should be put on your work calendar so your colleagues will know that you are not available.

Vacation & Leave Policy

We are closed on all Federal holidays, the day after Thanksgiving, and during the week between Christmas and the New Year.

We expect everyone to be able to get their work done in a timely fashion, and to not have to work on personal time. Rested and refreshed people are better team members, and we strongly encourage enjoying life outside of the office.

Employees should take a minimum of two weeks of paid vacation per year, totaling 10 business days.

For personal, medical, or family leave, each employee is encouraged to take the current Family and Medical Leave Act maximum.

For maternity and paternity leave, employees are encouraged to take up to 16 weeks of leave.

Taking Leave

Employees must inform your supervisor in writing as far in advance as is reasonable for staff and project planning purposes. All extended periods of leave must be discussed with the Executive Director.

To schedule time off, permission must be granted by your supervisor no less than 5 business days in advance, the dates your travel must be put onto the your work calendar and the team should be notified.

Sick Days

Please notify the team if you are sick and need to take the day off. Even if you are feeling well enough to work, please work from home until you are completely recovered, to avoid spreading illness through our small office.

How We Work

Email Accounts, Document Sharing & Password Sharing

We will set you up with an organizational Google Suite account. This will provide you access to all the basic necessities like email, calendar, and shared storage.

Please use your organizational email address for all work-related correspondence, scheduling, etc. Personal accounts should not be used for work-related activities.

You will be granted access to our shared password manager. All passwords that need to be shared with the organization must be shared using this manager; passwords should not be shared via email or other insecure methods.

Calendars

Please keep your availability updated on your Google calendar account associated with the organization - please don't use your personal account. Please record any meetings, vacation time, appointments, and anything else that your teammates might need to schedule around. Feel free to schedule meetings with other coworkers on the Google calendar.

Regular Meetings

All meetings must be held in a manner that allows for full participation of all employees, regardless of such individual variables such as geographic location.

Daily Standup(s)

To better coordinate organizational or product development efforts, one or more daily standups may be scheduled, each lasting no longer than 15 minutes.

The purpose of the daily standup is to provide a short summary of what you focused on the previous day, what you are planning on focusing on today, and, critically, identification of any obstacles or blockers that may prevent you from completing a task.

Once each participant has completed their summary, the standup may be ended. Should a topic be raised that requires more in depth discussion, a separate meeting should be scheduled.

Book Clubs, "Family" Meals, and Other Informal Rituals

We are a small, close knit team. To maintain a balanced, healthy, and fun organization, we encourage the formation of informal gatherings and groups. Any employee may sponsor an informal gathering or group so as long it is are open to all employees and supports organizational health.

As in any endeavor, it is critical that any informal gathering or group clearly define its purpose and the expectation placed upon its participants.

Tools & Services We Use

We utilize an ever-changing array of tools and platforms to get our work done. Employees are expected to familiarize themselves with all tools that are applicable to their work areas. Trial and adoption of new tools is encouraged and should be done in a collaborative manner with your colleagues to encourage operational alignment and discourage tool siloing.

We do our best to keep our tool and platform] list up to date.

Recommended Reading

- Remote: Office Not Required (specific chapters)
- How to Collaborate Remotely
- Beware the Dragons
- Managing Remote Workers
- Life as a Remote Worker
- Dealing with Excuses
- The Lean Startup
- Don't Make Me Think